

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

JULE TAFT,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOHN DOE 1-3

Defendants.

COMPLAINT

10-CV-196(NRB)

Jury Trial Demanded

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §1983 for the Defendants' commissions of acts under color of law in violation of the Plaintiff's rights under Fourth, Sixth, and Fourteenth Amendment to the United States Constitution and Article I, Section 12 of the New York State Constitution and of common law of the State of New York. The case arises from an November 18, 2010 incident in which members of the New York City Police Department ("NYPD") subjected plaintiff to false arrest, excessive force, assault, battery and fabricated evidence.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his state law claim of malicious prosecution. With respect to this state law claim on behalf of Plaintiff, a notice of claim was duly filed on the City of New York within 90 days of the dismissal of the criminal charges filed against plaintiff, more than 30 days have elapsed since such filing, and the City has refused to settle plaintiff's state law claims. Moreover, this action was filed within one year and 90 days of the incident that is the basis of this case.

4. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in the Southern District of New York. Moreover, venue is proper pursuant to 28 U.S.C. § 1391(b) because the City of New York's deliberate indifference to plaintiff's constitutional rights occurred in Manhattan at NYPD Headquarters located at One Police Plaza and at the office of the Civilian Complaint Review Board located at 40 Rector Street.

PARTIES

5. Plaintiff is a resident of the State of New York, County of New York.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. The New York City Police department (the "NYPD") is the department of the City responsible for, among other functions, arresting persons for offenses and maintaining custody over such persons prior to their initial appearance in court. At all times relevant hereto, the NYPD, together with the City, was responsible for the policy, practice, supervision,

implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, defendant NYPD, together with the City, was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obeyed the Constitutions and laws of the United States and of the State of New York.

8. John Does are members of the NYPD who violated plaintiff's rights as described herein. Does are sued in their individual and official capacity.

STATEMENT OF FACTS

9. On November 18, 2010, at approximately 1:29 a.m. plaintiff was lawfully riding his bicycle in the vicinity of Ralph and Bergen Street in Brooklyn, NY. Plaintiff was in the bicycle lane, when a vehicle approached plaintiff from behind. This vehicle veered into the bike lane, frightening plaintiff and causing plaintiff to go on the sidewalk.

10. Frightened, plaintiff rode quickly away. When plaintiff saw a black Impala with flashing lights, plaintiff approached the car, seeking safety.

11. One of the officers from the Impala, tossed plaintiff off his bicycle and held him down. The officer then proceeded to punch plaintiff while asking "Where's the gun?".

12. When plaintiff explained that he did not have a gun, the officer struck him again asking "If you have no gun, why did you run?". As plaintiff was being held and struck, two other officers approached the scene. Plaintiff was then taken to the 73rd precinct.

13. On the evening of November 18, 2010, plaintiff was transported to Kings Central Booking. While plaintiff was confined in Kings Central Booking, the officers,

misrepresented to the Kings County District Attorney's Office that plaintiff had committed the crime of Disorderly Conduct and Resisting Arrest. Late in the evening of November 18, 2010, Plaintiff received an ACD.

14. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, anxiety, embarrassment, and humiliation. Further, plaintiff experienced pain, numbness, and bruising from the excessively tight handcuffs.

**FEDERAL AND STATE LAW CLAIMS
AGAINST JOHN DOES**

15. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-17 as if fully set forth herein.

16. The conduct of Police Officer John Does, as described herein, amounted to false arrest, excessive force, assault and battery, and fabricated evidence. This conduct violated plaintiff's rights under 42 U.S.C. § 1983, the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

**FEDERAL LAW CLAIMS AGAINST THE
CITY OF NEW YORK**

17. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-19 as if fully set forth herein. The City of New York directly caused the constitutional violations suffered by plaintiff.

18. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the NYPD and the

Civilian Complaint Review Board, and from the NYPD's own observations, that the individual defendants are unfit, ill-tempered police officers who have the propensity to commit the acts alleged herein.

19. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, the City of New York failed to adequately investigate prior complaints against the officers.

20. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper,

including injunctive and declaratory relief.

DATED: January 10, 2011
New York, New York

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